

26VECV00414 26VECV00414

County: los-angeles

Division: Civil Law and Motion

Department: 107

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Case Number: 26VECV00414 Hearing Date: August 6, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Armin

Matisen,

Plaintiff.

v.

Dick's

Sporting Goods, Inc.

Defendant.

Case Number Department

26VECV00414 107

COURT'S [TENTATIVE]
ORDER RE:

Motion
to Stay Case

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.

BACKGROUND

Defendant

Dick's Sporting Goods, Inc. ("Defendant") operates dickssportinggoods.com (the "Website"). (First Amended Complaint ["FAC"] ¶ 1.) Defendant embedded tracking technologies into the Website that capture and transmit users' communications and communication attributes and intercept the contents of users' communications. (FAC ¶¶ 3-4.) Plaintiff Armin Matisen ("Plaintiff") accessed the Website from within California on four to five occasions between August 2025 and January 2026. (FAC ¶ 19.) "Plaintiff did not knowingly authorize Defendant to contemporaneously duplicate or transmit his Website communications or associated identifiers to third-party advertising, analytics, personalization, affiliate, or session-replay services" but "[d]uring those visits, the Tracking Technologies activated and initiated communications before Plaintiff exercised any privacy-choice mechanism or otherwise provided affirmative consent." (FAC ¶ 19.)

On

January 23, 2026, Plaintiff filed a complaint against Defendant and Does 1 through 10, alleging a cause of action for violations of the California Invasion of Privacy Act (Cal. Penal Code section 638.51.)

On

April 28, 2026, Defendant filed a motion to stay case (the "Motion").

On

July 23, 2026, Plaintiff filed a first amended complaint against Defendant and Does 1 through 10, alleging causes of action for: (1) violation of California Invasion of Privacy Act, Cal. Penal Code section 631(a); (2) violation of California Invasion of Privacy Act, Cal. Penal Code section 638.51; (3) intrusion upon seclusion; (4) invasion of privacy under the California Constitution; (5) violation of California Unfair Competition Law, Bus. & Prof. Code section 17200 et seq.; and (6) unjust enrichment/restitution.

Also

on July 23, 2026, Plaintiff filed an opposition to the Motion. On July 30, 2026, Defendant filed a reply.

II.

REQUESTS

FOR JUDICIAL NOTICE

Defendant

filed a request for judicial notice with the Motion requesting the court take judicial notice of the California State Assembly Committee on Privacy and Consumer Protection April 21, 2015, analysis of Assembly Bill 929 and a screenshot from April 2, 2026, of the website California Courts – Appellate Court Case Information; Docket (Register of Actions) showing the docket for Variety Media LLC v. Superior Court, No. B350578. (Defendant's Requests for Judicial Notice p. 2.)

The

court grants Defendant's requests and takes judicial notice of these documents. (Evid. Code, § 452, subds. (c)-(d).)

Plaintiff

requests the court take judicial notice of a Minute Order dated June 10, 2026 in the matter of Matisen v. Levi Strauss & Co., Case No. 26VECV00379. (Plaintiff's Request for Judicial Notice p. 2.)

The court may

decline to take judicial notice of materials that are not “necessary, helpful, or relevant.” (Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739,748, fn. 6.) The court denies Plaintiff's request because the referenced Minute Order is not necessary, helpful, or relevant to the court's ruling on the Motion.

Defendant filed

a request for judicial notice with the reply requesting the court take judicial notice of a screenshot from July 29, 2026, of the website California Courts – Appellate Court Case Information; Docket (Register of Actions) showing the docket for Variety Media LLC v. Superior Court, No. B350578, a Minute Order dated May 28, 2026 in the matter of Sorensen v. GT's Living Foods, LLC, Case No. 24STCV20548 (Cal. Super. Ct. L.A. Cnty.), and a Joint Stipulation and

Order to Stay Case Pending Appellate Proceeding dated May 8, 2026 in the matter of James v. Teradek LLC, Case No. 26STCV08055 (Cal. Super. Ct. L.A. Cnty.). (Defendant's Reply Requests for Judicial Notice p. 2.)

The court grants Defendant's request and takes judicial notice of the docket for Variety Media LLC v. Superior Court, No. B350578. The court denies the requests to take judicial notice of the referenced Minute Order and Joint Stipulation and Order to Stay Case Pending Appellate Proceeding because the materials are not necessary, helpful, or relevant to the court's ruling on the Motion.

III.

LEGAL

STANDARD

"[T]rial

courts have inherent power to stay trials awaiting final appellate resolution of related actions that might conclusively determine all or some of the issues in the stayed action." (Koch-Ash v. Superior Court (1986) 180 Cal.App.3d 689, 696.)

The

court "must weigh competing interests and maintain an even balance." (Landis v. North American Co. ("Landis") (1936) 299 U.S. 248, 254-255; OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141 (citing Landis with approval).) The moving party "must make out a clear case of hardship or inequity in being required to go forward, if there is even a fair possibility that the stay for which he prays will work damage to some one else." (Landis, supra, 299 U.S. at p. 255.) "Only in rare circumstances will a litigant in one cause be compelled to stand aside while a litigant in another settles the rule of law that will define the rights of both." (Id.)

IV.

DISCUSSION

Defendant

argues a stay is warranted because Plaintiff asserts a cause of action for violation of Penal Code section 638.51. (Motion p. 4.) Defendant argues trial courts are split on whether section 638.51 applies "beyond telephone devices

and telephone communications.” (Motion pp. 4-5.) Defendant states the Court of Appeal is poised to rule on this issue in Variety Media and argues the court should stay the action until the Court of Appeals resolves the mandate. (Motion p. 5.) Defendant indicates it will be prejudiced if the Motion is not granted because it “may be forced to expend significant time, money, and resources defending against a claim that could become legally barred by the Court of Appeal in the midst of that litigation.” (Motion p. 6.) Defendant also argues a stay would benefit the court and the parties because the Variety Media decision “will provide guidance to both sides and this Court on the core issue of Plaintiff’s complaint: whether section 638.51 applies to website technologies that were never employed to monitor a telephone line.” (Motion p. 6.) Finally, Defendant argues Plaintiff will not be prejudiced because his damages are solely statutory and he does not risk incurring additional losses. (Motion p. 6.)

In opposition, Plaintiff argues Defendant has not established good cause or concrete hardship because it “relies almost entirely on generalized assertions that it may expend resources litigating a case that could later be affected by a future appellate decision.” (Opposition p. 8.) Plaintiff notes Defendant identifies no unusually onerous discovery obligations and submits no declarations supporting that claim. (Opposition p. 9.) Plaintiff further argues the Variety Media decision will not resolve Plaintiff’s claims because Plaintiff’s first amended complaint alleges additional actions beyond the violation of section 638.51 claim. (Opposition p. 10.) Plaintiff argues Defendant “assumes the Court of Appeal will issue a decision favorable to its position” and “further assumes the Court of Appeal will issue a published decision rather than an unpublished disposition.” (Opposition p. 11.) Plaintiff further argues Defendant assumes the Court of Appeal’s decision will resolve all legal questions and “assumes that no additional appellate proceedings will follow . . .” (Opposition p. 11.) Finally, Plaintiff argues they will be prejudiced if the case is indefinitely stayed because it would impair Plaintiff’s ability to investigate, develop and preserve evidence. (Opposition pp. 14-15.)

The court finds the balance of equities here does not weigh strongly in favor of, or against, granting the Motion. Plaintiff has an interest in pursuing their claims. Defendant likewise has an interest in conserving resources not defending potentially baseless allegations.

Defendant

states the “appeal in Variety Media is potentially dispositive of this entire case and warrants entering a stay” and Defendant “may be forced to expend significant time, money, and resources defending against a claim that could become legally barred by the Court of Appeal in the midst of that litigation.” (Motion p. 6, italics added.) It is speculative to argue the Variety Media appeal will dispose of this entire case. Moreover, Plaintiff’s first amended complaint alleges causes of action beyond violation of Penal Code section 638.51. Defendant argues that “all of Plaintiff’s newly asserted claims arise from and depend on the same predicate facts: that [Defendant’s] alleged use of website tracking technologies purportedly intercept, capture, and transmit user communications and browsing data to third parties without consent.” (Reply p. 7.) But the fact Plaintiff’s allegations arise from the same predicate facts does not mean a decision in Variety Media will dispose of all of Plaintiff’s causes of action. The court further finds it is speculative to argue the Court of Appeal will issue a decision in Defendant’s favor and that the Court of Appeal’s decision will be published.

The

court concludes a stay is not warranted here.

V.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: August 6, 2026 _____ Hon. Eric Harmon

Judge

of the Superior Court